OREGON LIQUOR & CANNABIS COMMISSION

FULL ON-PREMISES SALES - COMMERCIAL
License Privileges

Introduction

Oregon Revised Statute (ORS) 471.175 authorizes the full on-premises sales license and its license privileges.

License Type: Full On-Premises Sales, Commercial (F-COM)

- The OLCC license fee is $800 per year.
- On-premises. May sell and serve *by the drink* at retail to consumers for consumption ***on*** your licensed premises:
  - Distilled spirits, malt beverages (beer), wine, and cider.
- Off-Premises: May sell at retail to consumers for consumption ***off*** your licensed premises:
  - Malt beverages, wine, and cider in factory-sealed containers for take-out and delivery. There is no minimum or maximum container size or volume limit for *take-out*; however, to deliver must follow OAR 845-006-0392 and 845-006-0396.
  - Malt beverages, wine, and cider in a securely covered container (growler) for take-out and delivery. There is no *minimum* container size limit; however, the *maximum* size of the container is two gallons. To deliver, must follow OAR 845-006-0392 and 845-006-0396.
  - Cocktails (mixed drinks) and servings of wine by the drink to consumers for consumption ***off*** your licensed premises. Must follow OAR 845-006-0399.
- Deliver: May deliver direct to consumer for consumption ***off*** your licensed premises:
  - Malt beverages, wine, and cider in factory-sealed containers. Must follow OAR 845-006-0392 and 845-006-0396.
  - Malt beverages, wine, and cider in a securely covered container (growler). There is no *minimum* container size limit; however, the *maximum* size of the container is two gallons. Must follow OAR 845-006-0392 and 845-006-0396.
  - Cocktails (mixed drinks) and servings of wine by the drink to consumers for consumption ***off*** your licensed premises. Must follow OAR 845-006-0399.
- Food service: See OAR 845-006-0459 and 845-006-0460.
  - Licensee must make at least five different meals available at all times and in all areas where alcoholic beverage service is available.
  - Notwithstanding this requirement, a licensee may make fewer than five different meals available if the Commission determines that the clearly dominant emphasis in the areas with alcoholic beverage service is food service. One method for showing that the clearly dominant emphasis in the area is food service is for the Commission to determine that the gross receipts from the sale of meals to patrons for consumption in the area exceed or are reasonably expected to exceed the gross receipts from alcoholic beverage sales when alcoholic beverage service is available.
  - Dining Seats: The licensed premises must have at least 30 dining seats during a time period which must last at least two hours prior to 10:00 p.m. Seats at counters in entertainment areas and at bars as defined in OAR 845-006-0340 do not qualify as dining seating. A premises may have less than 30 dining seats during this time period if the Commission determines that the clearly dominant emphasis of the premises is food service as described in this rule at all times and in all areas where alcohol service is available when open to the public.
    - "Meal" means a food item, or combination of food items, prepared or cooked on the licensed premises that the Commission determines is a main course and is a serving of food sufficient to satisfy the appetite of one individual. Food items that are appetizers, snacks, and desserts do not qualify as a meal. Examples include, but are not limited to, popcorn, peanuts, chips, a serving of food that is not sufficient to satisfy the appetite of one individual, and food items offered by the licensee as other than a meal.
    - "Different meals" means meals that the Commission determines differ in their primary ingredients or method of preparation. For example, a turkey sandwich differs from a salami sandwich, a beef burger differs from a turkey burger, a pepperoni pizza differs from a cheese

pizza, and fried chicken differs from baked chicken. Different sizes of the same item are not considered different under this rule. For example, a large cheese pizza is not different from a small cheese pizza and a large hot dog is not different from a small hot dog.

- (3) "Dining seats" means seating at tables or food counters as defined in OAR 845-006-0340 located in areas of the licensed premises regularly open to the public where the Commission determines that each table top or seating area provides a minimum space that will accommodate a place setting consisting of a plate or dish, glassware, napkin and utensils for each seat.

- Eligible to apply to get pre-approved to cater some events ***off of the annually licensed premises*** (events that are small, usually closed to the general public, and where food service is the primary activity) as described in ORS 471.184(1).
- Eligible to apply for a "special event" license: Temporary Use of an Annual License (TUAL) to sell and serve alcoholic beverages at a special event ***off of the annually licensed premises*** as described in ORS 471.184(2).

Obtaining Alcoholic Beverages for Sale and Service

A Full On-Premises Commercial sales licensee must obtain their alcoholic beverages as follows:

- From within Oregon:
  - Must obtain malt beverages (beer), wine, and cider only from manufacturers and wholesalers within Oregon. These are the following license types: brewery, brewery-public house, grower sales privilege, wholesale malt beverage and wine, and winery.
- From outside of Oregon:
  - May obtain malt beverages, wine, and cider directly from businesses outside of Oregon only if:
    - The business outside of Oregon holds an OLCC-issued direct to retailer permit; ***and***
    - The FULL ON-PREMISES sales licensee follows OAR 845-006-0401.
- Distilled liquor
  - Must obtain distilled liquor from an OLCC Retail Liquor Store.

Some Other Links

- CAMP Customer Portal: CAMP Customer Portal
- Alcoholic liquor laws: ORS 471
- Delivery of mixed drinks and servings of wine: OAR 845-006-0399
- Wine and cider delivery to consumer: OAR 845-006-0392
- Malt beverage delivery to a consumer: OAR 845-006-0396
- F-COM food requirements: OAR 845-006-0459 and OAR 845-006-0460
- For alcohol service permit questions: olcc.servicepermits@olcc.oregon.gov
- For general liquor licensing questions: olcc.alcohollicensing@olcc.oregon.gov
- For liquor license renewal inquiries: olcc.renewals@olcc.oregon.gov
- For liquor compliance or enforcement inquiries: alcohol.olcc@olcc.oregon.gov